William J. Marsh
52 Harbor View Lane
Dundalk, MD 21222

May 28, 2024

Marcus Whitfield, Assistant State's Attorney
Office of the State's Attorney for Baltimore City
120 E. Baltimore Street
Baltimore, MD 21202

Re: State v. John Smith, Case No. 24-CR-004512

Dear Mr. Whitfield:

Thank you for meeting with me last week. You asked me to put a few things in writing, so here they are. I will try to keep it to what I know firsthand, and I will say up front that I have not talked to John since this started, on the advice of the company.

First, about the invoices. I am the night shift supervisor at the Holabird warehouse. In April a dispatcher from one of our regular carriers asked me who Patapsco Freight was, because he had never seen one of their trucks in our yard. I checked the gate logs for every date on the Patapsco invoices and found nothing. I also noticed the price per trailer was about forty percent above what we pay anyone else. On April 29 I took what I had to Linda Pruitt in compliance at our Smith Avenue headquarters. That is all I did. I did not accuse anybody by name. The approvals had Mr. Smith's initials on them, so I guess the name was obvious.

Second, I know the defense is going to say I had a grudge. I will not pretend we were close. I wanted the operations job in 2019 and Johnny got it. I was sore about it for a while. At the company cookout in July 2022 I made a dumb joke about how one day Johnny will slip up and I will be right there to take his job. People laughed, including him. I regret saying it now. But a bad joke two years ago is not a reason to steal from your own company, and it is not a reason to make up a vendor problem that the bank records will either prove or disprove.

Third, the night of May 3. I was not at work. I was home in Dundalk with my wife, Carla, from about 6:30 PM on. We watched the Orioles game and went to bed after the eleven o'clock news. Carla Marsh will confirm that, and so will my phone, which was on our home Wi-Fi all night. At 10:58 PM Ironclad dispatch called me as the on-call supervisor because Darnell had been hurt. I got dressed and drove straight over. I badged in at the rear dock at 11:19 PM. That will be in the badge log. The police were already there.

When I got upstairs, the Patapsco binder was gone, and so was a second binder and the office

laptop. I told Officer Chen that, and I told him I would pull whatever records he needed. I also told him the dock camera had been down since the first of the month. I had put in the work order myself on May 1. I want that to be clear, because I have heard secondhand that somebody thinks it is suspicious. It is not. That camera goes down every spring.

Fourth, Darnell. Darnell Price has worked the overnight post at our building for six years and he is a friend. I visited Mr. Price at home the following week. He told me he did not get a good look at the man's face but that he "moved fast." I am passing that along because I think you should hear it, even if it does not help the case.

Last, about Steve. I trained Steve Smith on nights in 2022. He was a good worker and I have nothing bad to say about him. I know he knows the building. So do about two hundred other people. Will anyone be asking where those people were? I am not trying to point at anybody. I just want the same questions asked of everyone that were asked of me.

If you need me to testify, I will. My shift starts at 6 PM, so mornings are best. My cell is (410) 555-0164.

Sincerely,

/s/ Will Marsh
William J. Marsh

cc: Lauren Okafor, Esq., Okafor & Reyes LLP (at the request of the State, per discovery obligations)